

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ABRAHAM RICHERDSON,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER CHARLES
ALEXANDER, SHIELD NUMBER UNKNOWN,
POLICE OFFICER KERMAR MCKENZIE, SHIELD
NUMBER 20185, AND POLICE OFFICER KELLY,
BADGE NUMBER UNKNOWN,Defendants.
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Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.Basis of venue is place
of occurrence.SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 28, 2020TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ABRAHAM RICHERDSON
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER CHARLES ALEXANDER,
SHIELD NUMBER UNKNOWN,
POLICE OFFICER KERMAR MCKENZIE,
SHIELD NUMBER UNKNOWN,
POLICE OFFICER KELLY, SHIELD
NUMBER UNKNOWN
47th Precinct
4111 Laconia Avenue
Bronx, New York 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ABRAHAM RICHERDSON,

Plaintiff,

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CITY OF NEW YORK, POLICE OFFICER CHARLES
ALEXANDER, SHIELD NUMBER UNKNOWN,
POLICE OFFICER KERMAR MCKENZIE, SHIELD
NUMBER 20185, AND POLICE OFFICER KELLY,
BADGE NUMBER UNKNOWN,**VERIFIED COMPLAINT**Defendants.
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Plaintiff ABRAHAM RICHERDSON by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, respectfully alleges as follows:

1. That Plaintiff ABRAHAM RICHERDSON is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof, a duly authorized police department, authorized to perform all functions of a police department under New York State Law, acting under the direction, control and supervision of the aforementioned municipal corporation CITY OF NEW YORK.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, was employed by Defendant CITY OF NEW

YORK as a police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. That at all times hereinafter mentioned, Defendant POLICE OFFICER KELLY, SHIELD NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

11. That at all times hereinafter mentioned, Defendant POLICE OFFICER KELLY, SHIELD NUMBER UNKNOWN, acted within the scope of her employment for Defendant CITY OF NEW YORK.

12. That at all times hereinafter mentioned, Defendant POLICE OFFICER KELLY, SHIELD NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the

authority of her office as a police officer for said city and state.

13. That on August 28, 2019, at approximately 10:15 A.M., Plaintiff ABRAHAM RICHERDSON was outside 3562 Carlisle Place, in the County of Bronx, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN.

14. At the aforementioned time and place, Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, placed Plaintiff ABRAHAM RICHERDSON under arrest. During the arrest, Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, grabbed Plaintiff ABRAHAM RICHERDSON from behind and slammed him to the ground, jumped on Plaintiff, and handcuffed him. While Plaintiff ABRAHAM RICHERDSON was on the ground handcuffed, and in full control of the Defendant police officers, Defendant POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, forcibly stomped on Plaintiff's left ankle causing severe injuries.

15. That at the aforementioned time and place, during the course of Plaintiff's arrest, Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and abused Plaintiff ABRAHAM RICHERDSON.

16. That, as a result of this unprovoked assault, Plaintiff ABRAHAM RICHERDSON sustained injuries including, but not limited to, a left ankle fracture, suffered emotional distress, embarrassment, humiliation, and was deprived of his constitutional rights.

17. On November 18, 2019, within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff ABRAHAM RICHERDSON duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

18. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, and POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBERS UNKNOWN.

19. Upon information and belief, the municipal hearing in this matter was adjourned on consent of all parties and has not been rescheduled.

20. This action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT

21. Plaintiff ABRAHAM RICHERDSON repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

22. The aforementioned acts of Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, placed Plaintiff ABRAHAM RICHERDSON in apprehension of imminent harmful and offensive bodily contact.

23. As a result of Defendants' conduct, Plaintiff ABRAHAM RICHERDSON has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

24. Plaintiff ABRAHAM RICHERDSON repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

25. That Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, touched Plaintiff ABRAHAM RICHERDSON in a harmful and offensive manner.

26. That Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, did so without privilege or consent from Plaintiff ABRAHAM RICHERDSON.

27. As a result of Defendants' conduct, Plaintiff ABRAHAM RICHERDSON has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

28. Plaintiff ABRAHAM RICHERDSON repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

29. That the level of force employed by Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, was objectively unreasonable, unnecessary, unjustified and was delivered maliciously and sadistically to punish Plaintiff ABRAHAM RICHERDSON, all in violation of Plaintiff ABRAHAM RICHERDSON's constitutional rights.

30. As a result of the aforementioned conduct of Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER

UNKNOWN, Plaintiff ABRAHAM RICHERDSON was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR FAILURE TO INTERVENE**

31. Plaintiff ABRAHAM RICHERDSON repeats, reiterates and realleges each and every allegation contained in this complaint.

32. That each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff ABRAHAM RICHERDSON's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

33. That, as a result of the aforementioned conduct of the individual Defendants, Plaintiff ABRAHAM RICHERDSON's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY**

34. Plaintiff ABRAHAM RICHERDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

36. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to (a) using force in an excessive, unreasonable, unnecessary and unjustified manner, and (b) using force with the purpose and intent of maliciously and sadistically punishing individuals in their custody.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the

safety, well- being and constitutional rights of Plaintiff ABRAHAM RICHERDSON.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ABRAHAM RICHERDSON as alleged herein.

39. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ABRAHAM RICHERDSON as alleged herein.

40. Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, while acting under the color of state law, was directly and actively involved in violating Plaintiff ABRAHAM RICHERDSON's constitutional rights.

41. All of the foregoing acts by defendants deprived Plaintiff ABRAHAM RICHERDSON of federally protected rights including, but not limited to, the right:

- A. Not to have excessive force imposed upon him;
- B. Not to have cruel and unusual punishment imposed upon him;
- C. To receive equal protection under the law.

AS AND FOR A SIXTH CAUSE OF ACTION
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

42. Plaintiff ABRAHAM RICHERDSON repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

43. All of the aforementioned acts of Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, were carried out under color of state law.

44. All of the aforementioned acts deprived Plaintiff ABRAHAM RICHERDSON of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Eight and Fourteenth Amendments to the Constitution of the United States of America, in

violation of 42 U.S.C. § 1983.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION**

45. Plaintiff ABRAHAM RICHERDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

47. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR NEGLIGENT TRAINING AND SUPERVISION**

48. Plaintiff ABRAHAM RICHERDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff ABRAHAM RICHERDSON. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

50. The failure of Defendant, CITY OF NEW YORK, to train, supervise, discipline or in anyway control Defendants POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff ABRAHAM RICHERDSON

AS AND FOR A NINTH CAUSE OF ACTION
FOR RESPONDEAT SUPERIOR LIABILITY

51. Plaintiff ABRAHAM RICHERDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

52. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

53. As a result of the foregoing, Plaintiff ABRAHAM RICHERDSON is entitled to compensatory damages in the sum of Two Million Dollars (\$2,000,000.00) and is further entitled to punitive damages in the sum of Four Million Dollars (\$4,000,000.00).

WHEREFORE Plaintiff ABRAHAM RICHERDSON demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER CHARLES ALEXANDER, SHIELD NUMBER UNKNOWN, POLICE OFFICER KERMAR MCKENZIE, SHIELD NUMBER 20185, and POLICE OFFICER KELLY, BADGE NUMBER UNKNOWN, jointly and severally, in the amount of Two Million Dollars (\$2,000,000.00) in compensatory damages and Four Million Dollars (\$4,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 28, 2020



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ABRAHAM RICHERDSON
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } ss.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirment maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 28, 2020


TRACIE A. SUNDACK